APPENDIX

S. N.	Item (Ref. COC)	Data
1	Employer	**Oberoi Realty Limited**
2	Contractor	**M/s _____**
3	Project Site and Address	Oberoi Elysian Project Oberoi Garden City, Off Western Express Highway, Goregaon (East), Mumbai 400063, Maharashtra
4	BOQ	Bill of Quantities used in tendering in which materials, parts, and labour (and their costs) are itemized.
5	COC	Conditions of Contract (**COC**) as set out in Annexure 01
6	Project In Charge	Project Director and in the absence, Executive Vice President (EVP).
7	Contractor's Authorised Representative	The name and particulars of the Contractor's Authorized Representative shall be submitted by the Contractor to the Employer's Project In-Charge within 07 (Seven) days from the Commencement Date.
8	Scope of Works (COC 01)	The scope of work of Contractor (hereinafter called the "Works") shall include but not be limited to; • Design, Supply, Installation, Testing and Commissioning(DSITC) of Flat Type Movable Roof (Automatic Retractable / Sliding). • All resources including machineries, equipment, scaffolding, consumables, manpower etc. to complete the scope of work. • Site to site shifting, Handling of all the required materials including Employer supplied materials to execute the works. • The works to be executed as per instructions of Employer's Project In-charge The scope of works is further detailed in the respective line items of the Bill of Quantities along with the estimated quantities.
9	Contract Amount (COC 02)	**INR Rs. -----/- (Rupees ---in words--- Only)** (inclusive of GST, dutes and levies as on the date of execution hereof.
10	Rate Validity (COC 02)	12 (Twelve) months beyond work Completion Date after taking into consideration, the extension of time awarded by the Employer, whichever is later.
11	Commencement Date (COC 03)	Immediately after award of Work to the contractor or notice to proceed issued by the Employer, whichever is earlier.
12	Completion Date (COC 03)	Scope of Work to be completed within 60 (Sixty) days from the date of issue of Work Order or Notice To Proceed whichever is earlier
13	Performance Bank Guarantee ("**PBG**") (COC 04)	Not Applicable
14	Retention: Percentage of the retention Amount (COC 36)	The retention shall be in the form of cash retention which shall be deducted at a rate of 5% (**Five percent**) of the gross bill value including Basic Rate Variation (if any) (excluding GST) on a progressive basis until the final bill and to be retained by the

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		Employer until the completion of DNP and as more particularly set out in COC 36 of the Works Contract.
15	Periods for submission of insurance policies (COC 11)	a) Evidence of insurance: 30 (Thirty) days from the date of execution of the Works Contract, or as per statutory requirement, whichever is earlier. b) Procurement of policies: 60 (Sixty) days from the date of execution of the Works Contract, or as per statutory requirement, whichever is earlier.
16	Mobilization Advance Payment (COC 34)	a) **Rs. --------/- (Rupees –in words-- Only)** (including GST) as mobilisation advance on submission of Advance Bank Guarantee for an equivalent value in approved format shall be paid to the contractor. b) The recovery of the same shall commence from second (2nd) Running Account (R.A.) bill. c) Recovery of the advance shall be on the pro-rata basis and full mobilisation advance amount shall be recovered upon/before certification of 85% (Eighty five percent) of the Contract Amount. d) The advance so given shall be utilized by the Contractor for activities related to the project only and not otherwise.
17	Payment Terms (COC 35)	The RA bills shall be submitted on a monthly basis The certified RA Bills shall be paid within fifteen (15) days of receipt of Contractor's certified Bill along with Tax Invoice at the Employer's head office, subject to subsequent certification thereof upon successful completion of Work/Stage as follow : a) 80% of the unit rate shall be payable upon delivery of material at site. b) 20% of the unit rate shall be payable upon successful installation, testing, commissioning and handing over at site.
18	Advance Payments and recovery for Specified materials	Not applicable
19	Dedicated Bank account	The Contractor shall maintain a dedicated bank account for receiving advances from the Employer, from time to time, towards procurement of material in connection with the works.
20	Escrow account	Not Applicable
21	Defects Notification Period (COC 44)	The Defects Notification Period (**the "DNP"**) shall be **24 (Twenty-Four) months** from the date of satisfactory handing over of works to the Employer without any snag and issue of Virtual Completion Certificate by the Employer.
22	Liquidated Damages (**LD**) for Delay (COC 06)	0.50% (Zero-point five percent) of the Final Contract Amount for each calendar week of delay over and above the Completion Date including any extension/reduction of time (if applicable) up to a

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		maximum of 5% (five percent) of the Final Contract Amount.
23	Consequential losses (COC 44)	Consequential losses shall be limited to any losses incurred due to rectification or reinstatement of any permanent or enabling Works, damaged due to reasons attributable to the Contractor.
24	Material supplied by the Employer on Free issue basis	Not applicable
25	List of Specified Materials	Not applicable
26	Water and Electricity (COC 14)	Water & Electricity will be provided at one point by the Employer free of cost. Further distribution will be on the vendor's scope, and as more particularly set out in COC 14 of the Works Contract.
27	Works Contracts (COC 02)	The following documents collectively: a) Agreement b) Appendix c) Annexure 01: Conditions of Contracts d) Annexure 02: BOQ e) Annexure 03: Safety, Health & Environment Rules and Regulations f) Annexure 04: List of Statutory Compliances g) Annexure 05: Material Inspection Request h) Annexure 06: Drawings i) Annexure 07: Technical Specifications(Not Applicable) j) Annexure 08: Basic Rate of Specified Materials (Not Applicable) k) Annexure 09: List of Approved Manufacturers / makes (Not Applicable) l) Annexure 10: Flow Chart for acceptance of material on site m) Annexure 11: Flow Chart for dispatch of rejected material out of site n) Annexure 12: Draft of Bank Guarantee o) Annexure 13: Draft of Deed of Warranty p) Annexure 14: Technical Deviations q) Annexure 15: List of Equipment, Technical Staff and Construction Schedule (Not Applicable) r) Annexure 16: Material Supplied by the Employer on Free Issue Basis (Not Applicable) s) Annexure 17: Quality SOPs & Quality ITPs
28	Communication (COC 09)	Project In-Charge and in the absence, the Project Director. All Contractual communications shall mandatorily be marked in "cc" to the Project Contract Lead and Head of Department,

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		Contracts of the Employer.
29	Housekeeping (COC 21)	The Contractor shall remove debris from work location and collect at designated place at the Project site as instructed by the Employer. The cost of removal of debris out of Project Site shall also be in the scope of the Contractor. Statutory permission & approval fees towards Solid Waste Management from City Municipal Corporation Department will also be borne by the Contractor.
30	Dewatering (COC 15)	Not applicable.
31	List of applicable SOPs	Following SOPs shall also be part of Tender. a) ORL/CPO-QA/SOP/MIR/6
32	List of applicable ITPs	NIL
33	Contractor's All Risk ("CAR") Insurance Policy	(a) Contractor's All Risk ("CAR") Insurance Policy shall be procured and maintained by **the Employer** and as more particularly specified in "COC 11: Insurance and Statutory Requirements", except for work packages detailed hereunder: i. Fencing Works (Hard Barricading Works) ii. Shore Piling Works iii. Foundation Piling Works iv. Excavation Works v. Soil Investigation Works vi. Any other work package duly informed by the Employer before award. (b) **The Contractor** shall procure and maintain CAR Insurance Policy for an amount of 110% of the Contract Value including GST valid for the entire duration of the Contract including extended periods (if any) for the work packages mentioned in para 33 [a(i) to a(vi)] hereabove.
34	Work	The Works shall include but not limited to Design, Supply, Fabrication, Installation, Testing and Commissioning of Sliding Roof in accordance with the Technical Specifications, Drawings and Instructions as issued by the Employer from time to time, BOQ and any other documents forming part of the Works Contract. The contractor shall solely be responsible for Timely Delivery, Quality and Safety of the Works. The scope of works is further detailed in the respective line items of the Bill of Quantities. Any work not mentioned expressly in the tender documents but

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		required to maintain the performance criteria and design intent of the Works shall be included in the Contractor's scope of work and the price for any such work is deemed to be included in the Contract Amount. In the event of an increase in the works due to Contractor's fault and/or Contractor obtains any information that leads it to believe that certain additional works are required for the due performance of its obligation under this Contract, then the same shall be performed by Contractor at no additional cost or expense and will not be treated as variation in quantities. The Contractor shall price for complete working system whether or not all components and expenditures are explicitly mentioned in detail in tender documents. The priced rates shall include all items for the system to work. Omissions if any will not be subject to measurement. To obtain necessary permissions licenses etc. as required from statutory bodies. The Contractor shall also prepare submit Design Calculation, Shop Drawings for the Works for written approval of the Project In-charge of the Employer. The contractor shall also be responsible for delivery of the materials required for successful Performance of the Works referred above and providing supervision and project management at site solely be responsible for timely delivery, quality and safety of the Works, cost which included in the agreed rates mentioned in the BOQ.